



CONFIDENTIAL

Mutual Non Disclosure Agreement

Commercial and technical discussions

Document reference	DL-NDA-001
Version	1.0
Effective date	[EFFECTIVE DATE]
Parties	DISTILLOGIC TECHNOLOGIES and [CLIENT LEGAL NAME]

This Agreement governs the exchange and protection of confidential business, technical, project, personnel and personal information while the Parties evaluate or perform a potential cooperation.

distillogic.gr | info@distillogic.gr

This Mutual Non Disclosure Agreement (the “Agreement”) is entered into as of [EFFECTIVE DATE] by and between:

S. D. MELAS TRADING BUSINESS, trading as DISTILLOGIC TECHNOLOGIES, an entity organised and existing under the laws of Greece, having its registered office at Zoodoxou Pigis 11, Patras, Greece, VAT / Tax Identification Number EL132234268, GEMI / Registration Number 147185216000, duly represented by Spiros Melas, Managing Director,

hereinafter referred to as “DISTILLOGIC”,

and

[CLIENT FULL LEGAL NAME], a company organised and existing under the laws of [COUNTRY], having its registered office at [CLIENT ADDRESS], registration / VAT number [NUMBER], duly represented by [NAME / TITLE],

hereinafter referred to as the “Client”.

DISTILLOGIC and the Client may each individually be referred to as a “Party” and collectively as the “Parties”.

1 Purpose

The Parties wish to evaluate, discuss, negotiate and potentially enter into a commercial and/or technical cooperation relating to one or more of the following:

- software engineering
- software development
- systems integration
- application modernisation
- cloud and platform engineering
- data and artificial intelligence engineering
- quality engineering
- application management
- technology delivery
- project delivery
- work package delivery
- application module delivery
- subcontracting
- dedicated engineering teams
- engineering squads
- staff augmentation
- managed services
- technical consulting
- architecture and analysis
- tender or framework cooperation
- other related technology and professional services

The above shall collectively constitute the “Purpose”. Confidential Information disclosed under this Agreement shall be used solely for the Purpose.

2 Definition of Confidential Information

For the purposes of this Agreement, “Confidential Information” means any non-public information disclosed or made available by one Party (the “Disclosing Party”) to the other Party (the “Receiving Party”), whether orally, visually, electronically, digitally, in writing, through demonstrations, meetings or video conferences, access to systems, or by any other means.

Confidential Information includes, without limitation:

Business and commercial information

- business plans
- business strategies
- pricing
- rates
- quotations
- commercial proposals
- margins
- budgets
- forecasts
- project values
- contractual terms
- procurement information
- customer and supplier information
- prospective clients
- tender information
- commercial negotiations
- business opportunities

Technical information

- software, application, system, integration and data architecture
- source code and object code
- algorithms
- scripts
- APIs
- database structures and schemas
- specifications
- technical documentation and diagrams
- infrastructure and DevOps configurations
- deployment procedures

- development and testing environments
- cloud architecture
- credentials and authentication information
- security configurations and vulnerability information
- monitoring information and logs
- technical roadmaps
- prototypes and proofs of concept
- technical methodologies and know-how

Project information

- Statements of Work
- Requests for Proposal
- technical and business requirements
- project plans and delivery schedules
- milestones and acceptance criteria
- risks and dependencies
- defects and backlogs
- release information
- client environments and production information

Personnel and resource information

- curricula vitae and professional profiles
- engineering and resource profiles
- capability matrices and candidate information
- availability information
- skills, qualifications, certifications and experience
- compensation or commercial information relating to personnel
- technical assessments and interview results

Personal data

- any information relating to an identified or identifiable natural person which is disclosed in connection with the Purpose

Information shall be treated as Confidential Information where, considering its nature and the circumstances of disclosure, a reasonable business person would understand that such information is confidential, whether or not it is specifically marked "Confidential".

3 Obligations of the Receiving Party

The Receiving Party shall:

- use Confidential Information solely for the Purpose
- protect Confidential Information using at least the same degree of care it applies to its own confidential information of similar importance, and in any event no less than reasonable care

- not disclose Confidential Information to any third party except as expressly permitted under this Agreement
- restrict access to persons who have a legitimate need to know for the Purpose
- not copy, reproduce or distribute Confidential Information except where reasonably necessary for the Purpose
- not commercially exploit the Confidential Information except pursuant to a subsequent written agreement between the Parties
- implement appropriate technical and organisational safeguards to prevent unauthorised access, disclosure, loss, alteration or misuse
- promptly inform the Disclosing Party upon becoming aware of any unauthorised access, disclosure, loss or misuse of Confidential Information

4 Permitted Recipients

The Receiving Party may disclose Confidential Information solely where necessary for the Purpose to its directors, officers, employees, authorised contractors, approved subcontractors, professional advisers, lawyers, accountants, auditors and technical consultants (the “Permitted Recipients”).

The Receiving Party shall ensure that Permitted Recipients:

- have a legitimate need to know the information
- are informed of its confidential nature
- are subject to confidentiality obligations no less protective than those contained in this Agreement

The Receiving Party remains responsible for any breach of this Agreement caused by its Permitted Recipients to the extent permitted by applicable law.

5 Exclusions from Confidential Information

Confidential Information shall not include information which the Receiving Party can reasonably demonstrate:

- a. was lawfully in its possession before disclosure by the Disclosing Party
- b. becomes publicly available through no breach of this Agreement
- c. is lawfully obtained from a third party without breach of any confidentiality obligation
- d. is independently developed by the Receiving Party without reference to or use of the Disclosing Party's Confidential Information
- e. has been expressly approved for public disclosure by the Disclosing Party in writing

The burden of demonstrating that an exclusion applies shall rest with the Receiving Party.

6 Personnel CV and Resource Protection

Any CV, engineering profile, candidate profile, resource profile, capability matrix, professional history, availability information, technical assessment or commercial resource information disclosed by DISTILLOGIC shall constitute Confidential Information.

Such information may be used exclusively for evaluating or performing a potential engagement with DISTILLOGIC.

The Client shall not use such information for the purpose of bypassing DISTILLOGIC or independently establishing a commercial or employment relationship with personnel introduced through DISTILLOGIC, except where expressly agreed in writing between the Parties.

Any detailed non-solicitation, non-circumvention, recruitment fee, conversion fee or personnel-transfer arrangements shall, where applicable, be governed by a subsequent Master Services Agreement, Statement of Work or other written commercial agreement.

7 Personal Data and Data Protection

Where Confidential Information contains personal data, each Party shall process such personal data only to the extent necessary for the Purpose; lawfully, fairly and transparently; in accordance with applicable data protection legislation; in accordance with Regulation (EU) 2016/679 (GDPR) where applicable; and in accordance with applicable Greek data protection legislation where relevant.

The Parties shall apply appropriate technical and organisational security measures. Personal data shall not be collected unnecessarily, retained longer than required, disclosed to unauthorised persons or used for unrelated purposes.

Where additional data processing arrangements are legally required, including a Data Processing Agreement, the Parties shall enter into such agreement separately.

8 Security of Confidential Information

Each Party shall take commercially reasonable measures appropriate to the sensitivity of the Confidential Information, which may include:

- access controls
- identity and authentication controls
- encryption
- secure file transfer
- restricted repositories
- controlled cloud storage
- password and secrets management
- audit logging
- endpoint security
- backup security
- restricted administrative access

Nothing in this Agreement shall require either Party to disclose security credentials or provide access beyond what is reasonably necessary for the Purpose.

9 Compulsory Disclosure

If the Receiving Party is required by law, regulation, court order, governmental authority, regulatory authority or other legally binding requirement to disclose Confidential Information, such disclosure shall not constitute a breach of this Agreement, provided that, to the extent legally permitted, the Receiving Party shall:

- promptly notify the Disclosing Party
- reasonably cooperate with the Disclosing Party in seeking protective treatment or limiting disclosure
- disclose only the minimum portion of Confidential Information legally required
- request confidential treatment where reasonably available

10 Return or Destruction of Information

Upon written request of the Disclosing Party, or upon termination of discussions where reasonably appropriate, the Receiving Party shall return or securely destroy Confidential Information in its possession or control. Upon request, the Receiving Party shall confirm such destruction in writing.

10.1 Legal or Compliance Copies

The Receiving Party may retain one archival copy where reasonably required for legal, regulatory, compliance, insurance, audit or dispute-resolution purposes.

10.2 Automated Backups

Confidential Information that remains within standard automated backup, disaster-recovery or archival systems does not need to be immediately deleted where deletion would be technically impractical.

Any retained copy shall remain subject to this Agreement, shall not be restored or accessed except for legitimate technical, legal or compliance reasons, and shall be deleted in accordance with normal retention schedules.

11 Ownership and No Licence

All Confidential Information remains the property of the Disclosing Party or its respective owner.

No disclosure under this Agreement shall transfer ownership, assign intellectual property or grant any licence, source-code right, patent right, copyright right, trademark right, database right or other proprietary right, except where expressly agreed in a subsequent written agreement.

12 Pre Existing Intellectual Property

Each Party retains ownership of all intellectual property, methodologies, tools, software, frameworks, libraries, know-how, templates and materials developed before the potential engagement or developed independently of the other Party's Confidential Information.

Ownership of deliverables created under an actual project shall be governed separately by the applicable commercial agreement, Master Services Agreement and/or Statement of Work.

13 No Reverse Engineering or Unauthorised Use

Except where expressly authorised in writing or permitted by mandatory applicable law, neither Party shall use Confidential Information to reverse engineer software, reproduce proprietary systems, recreate proprietary architecture, derive source code, build competing functionality based substantially upon disclosed confidential materials or circumvent technical protection mechanisms.

14 No Representation or Warranty

Confidential Information is provided for evaluation and discussion purposes.

Unless expressly agreed otherwise in writing, the Disclosing Party makes no representation or warranty regarding accuracy, completeness, fitness for a particular purpose or future commercial availability.

Each Party shall conduct its own evaluation before entering into any binding commercial arrangement.

15 No Obligation to Enter into a Transaction

Nothing in this Agreement obliges either Party to award a project, submit or accept a proposal, purchase or provide services, enter into a partnership, employ personnel, subcontract work or enter into any commercial transaction.

Either Party may terminate discussions at any time, subject to its continuing confidentiality obligations.

16 Publicity and Use of Name

Neither Party may, without the other Party's prior written consent, publicly announce the existence of negotiations; issue a press release; use the other Party's name, trademarks or logos; claim the other Party as a client, supplier, partner or reference; or publish case studies relating to the other Party.

This restriction shall not prevent disclosures required by law.

17 Term

This Agreement shall remain in force for a period of three (3) years from the Effective Date, unless replaced by a subsequent written agreement.

18 Survival of Confidentiality Obligations

The obligations relating to Confidential Information shall survive termination or expiry of this Agreement for five (5) years from the date on which the relevant Confidential Information was disclosed.

Information qualifying as a trade secret shall remain protected for as long as it continues to qualify as a trade secret under applicable law.

19 Trade Secrets

Nothing in this Agreement limits any protection available under applicable law in relation to trade secrets, confidential know-how, proprietary business information or proprietary technical information.

The Parties acknowledge that commercially valuable technical and business information may require continuing protection beyond the ordinary confidentiality period where it retains the characteristics of a legally protected trade secret.

20 Remedies

The Parties acknowledge that unauthorised disclosure or misuse of Confidential Information may result in serious and potentially irreparable harm.

In the event of actual or threatened breach, the affected Party may seek injunctive relief, interim protective measures, damages, compensation or any other remedy available under applicable law.

Nothing in this Agreement creates a predetermined contractual penalty unless separately agreed in writing.

21 Limitation of the NDA

This Agreement governs confidentiality only.

Unless expressly stated otherwise, it does not establish project scope, pricing, payment terms, service levels, delivery milestones, warranties, project acceptance criteria, change-management procedures, personnel rates, liability caps, service credits or intellectual-property transfer for project deliverables.

Such matters shall be governed by separate commercial agreements.

22 Relationship of the Parties

Nothing in this Agreement creates a partnership, joint venture, agency, employment relationship, fiduciary relationship or exclusive relationship between the Parties.

Each Party acts as an independent contracting entity.

23 Assignment

Neither Party may assign this Agreement to a third party without the prior written consent of the other Party, except in connection with a merger, corporate restructuring, sale of substantially all relevant assets or acquisition of the Party, provided that the successor entity assumes the obligations of this Agreement.

24 Notices

Formal notices under this Agreement shall be made in writing and may be sent by registered mail, courier or email to the authorised corporate contact designated by each Party.

DISTILLOGIC TECHNOLOGIES	CLIENT
Contact: Spiros Melas	Contact: [NAME]
Title: Managing Director	Title: [TITLE]
Email: info@distillogic.gr	Email: [EMAIL]
Address: Zoodoxou Pigis 11, Patras, Greece	Address: [CLIENT ADDRESS]

A notice sent electronically shall be deemed received when its successful delivery can reasonably be demonstrated, subject to applicable law.

25 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Greece, without prejudice to mandatory provisions of applicable law.

26 Jurisdiction

Unless otherwise agreed in writing, the competent courts of Patras, Greece shall have exclusive jurisdiction over disputes arising out of or in connection with this Agreement, subject to any mandatory jurisdictional rules.

27 Good Faith Resolution

Before initiating formal proceedings, the Parties shall where reasonably practicable attempt in good faith to resolve any dispute through authorised business or legal representatives.

Nothing in this provision prevents a Party from seeking urgent interim or injunctive relief.

28 Entire Agreement

This Agreement constitutes the entire agreement between the Parties concerning confidentiality in relation to the Purpose and supersedes previous oral or written confidentiality understandings relating to the same subject matter.

29 Amendments

Any amendment to this Agreement must be in writing and agreed by authorised representatives of both Parties.

30 Waiver

Failure or delay by either Party to exercise any right under this Agreement shall not constitute a waiver of that right. A waiver shall be effective only if made expressly in writing.

31 Severability

If any provision of this Agreement is found to be invalid, unlawful or unenforceable, that provision shall be interpreted or limited to the minimum extent necessary to make it enforceable where possible, and the remaining provisions shall continue in full force and effect.

32 Counterparts

This Agreement may be executed in counterparts. Each counterpart shall be deemed an original and all counterparts together shall constitute one agreement.

33 Electronic Signatures

The Parties agree that this Agreement may be signed electronically where permitted by applicable law. Electronic signatures and electronically exchanged signed copies may be treated as valid counterparts of the original Agreement.

34 Authority to Sign

Each person signing this Agreement represents that they are authorised to bind the Party on whose behalf they sign.

Signatures

CONFIDENTIAL

This Agreement and its contents are intended solely for use between the Parties.

DISTILLOGIC TECHNOLOGIES

Software Engineering and Technology Delivery

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Legal Review Notice This document is a commercial contract template prepared for business use and should be reviewed by qualified legal counsel before first execution or where material amendments, foreign governing law, special regulatory requirements or high-value transactions apply.

FOR DISTILLOGIC	FOR THE CLIENT
Legal Entity: S. D. MELAS TRADING BUSINESS Trading Name: DISTILLOGIC TECHNOLOGIES	Company: [CLIENT LEGAL NAME] Registered Number: [NUMBER]
Name: Spiros Melas Title: Managing Director	Name: [NAME] Title: [TITLE]
Signature:	Signature:
Company stamp:	Company stamp:
Date: [DATE]	Date: [DATE]